



EMPLOYER ENGAGEMENT QUICK GUIDE

COMPETITIVE INTEGRATED EMPLOYMENT (CIE)

WHAT DOES THE LAW SAY?

To be considered “competitive integrated employment,” a job position must satisfy three criteria related to wages/benefits, integration, and opportunities for advancement (Section 7(5) of the Rehabilitation Act (29 U.S.C. § 705(5)) and 34 C.F.R. § 361.5(c)(9)). Specifically, “competitive integrated employment” means full- or part-time work –

- » In which the employee with a disability is compensated (including benefits) at a rate of the higher of the Federal, State, or local minimum wage applicable to the place of employment, and not less than the customary rate paid by the employer to employees without disabilities performing the same or similar work and who have similar experience, training, and skills;
- » At a (integrated) location–
 - That is typically found in the community; and
 - Where the individual with a disability interacts, for the purpose of performing the duties of the job position, with other employees within the work unit and at the entire worksite, and, as appropriate for the work performed, with other persons (e.g., customers and vendors) who are not individuals with disabilities (and who are not supervisory personnel or service providers) to the same extent that nondisabled employees interact with these persons; and
- » That presents opportunities for advancement for individuals with disabilities that are similar to those available to employees without disabilities in similar positions.

Competitive integrated employment also includes work performed by individuals with disabilities who are self-employed.”¹

IMPLICATIONS FOR EMPLOYER ENGAGEMENT

- » The term “Competitive Integrated Employment” is not business language and will probably never come up in conversation with an employer. CIE is important to understand and identify in case there are questions or misunderstandings regarding employment for people with disabilities.
- » Employer Engagement staff may need to help employers understand that employment for people with disabilities follows the same rules as employment for non-disabled workers, including the need for paying prevailing wages, providing same benefits, etc.
- » Employer Engagement activities are the bridges between the needs of the employers and the requirements of law. It is important to be aware of business perspectives on hiring needs.
- » Employer Engagement staff should be well-versed in identifying and educating employers and employees on workplace supports to ensure successful and long-term employment success. Workplace supports facilitate competitive integrated employment and may include mentors, employee training, technical assistance for supervisory staff, as well as information on assistive technology, etc.

INDICATORS OF COMPETITIVE INTEGRATED EMPLOYMENT

The following guidelines may be referred to when determining whether or not a particular employment opportunity meets the criteria for CIE.

¹ Rehabilitation Services Administration, March 8, 2021 FAQ 21-03, https://rsa.ed.gov/sites/default/files/subregulatory/RSA%20FAQs%2021-03%20%2803.08.21%29_0.pdf

All 3 sections (competitive wages, integrated location, opportunities for advancement) must be met to satisfy the CIE definition and criteria.

A. **WAGES: Both questions must be answered YES to meet criteria for Competitive Wages.** If one or both are answered NO, the employment does not meet competitive wages criteria and is not CIE, therefore further evaluation is not needed.

1. Is employee being paid competitive wages? (Equal to or greater than the Federal, State, or local minimum wage rate, whichever is higher, where the place of employment is located)
2. Is employee paid a wage (and benefits) comparable to the customary rate paid by the employer to employees without disabilities in similar positions with comparable skills, experience, and training?

Self-employment note: A self-employed individual with a disability in the start-up phase of a business venture who is making less than the applicable minimum wage can meet the definition of “competitive integrated employment.”

B. **INTEGRATED SETTING:** VR agencies must determine on a case-by-case basis whether the employment satisfies two criteria. **Both of these questions must have an answer of YES to be considered part of the competitive labor market.**

1. It is in a setting typically found in the community; and
2. It is in a setting in which the individual with the disability interacts while performing his or her job duties with employees without disabilities in the work unit and the entire employment site, and other persons (e.g., vendors and customers) without disabilities to the same extent that employees without disabilities in similar positions interact with these persons.

Note for Third-Party Contracts: *An employee's specific work unit should be evaluated in regard to integrated setting. Work units are considered to be dependent on the employer's organizational structure and may refer to a group of employees in a particular job category or who perform a specific task. Employees working together through a third-party contract will typically be considered to make up the work unit.*

Determine: Is it customary within the business or industry that the positions be filled through contracted services? (e.g., Janitorial within an office building, landscaping services, IT project management, etc.) **If answer is NO**, then the employment structured in this way would typically not represent competitive integrated employment since the business is not hiring individuals with disabilities directly.

C. **OTHER INDICATORS:**

1. Does the employee have the same opportunities for advancement as are available to employees without disabilities in similar positions?
2. Does the employee have meaningful interactions with coworkers (e.g., interactions solely with supervisory staff or those supporting the individual with a disability do not satisfy the criteria)?
3. Does the employee with a disability interact with others (e.g., customers and vendors) to the same extent as his or her colleagues without disabilities in similar positions?
4. Is the employee eligible for the level of benefits provided to other employees?

Indicators are drawn from Workforce Innovative Opportunities Act, Rehabilitation Services Administration, and CIE guidelines developed by the Michigan Department of Health and Human Services and the Colorado Department of Labor and Employment.